

Plaintiff's Negligence Per Se Claim (Cause 7)

Negligence per se requires: (1) a defendant violated a statute, ordinance, or regulation; (2) the violation proximately caused injury; (3) the injury resulted from an occurrence the enactment was designed to prevent; and (4) the plaintiff was a member of the class of persons the statute was intended to protect. (*Ramirez v. Nelson* (2008) 44 Cal. 4th 908, 917-18.) The first two elements are questions of fact, while the latter two are questions of law. (*Galvez v. Frields* (2001) 88 Cal.App.4th 1410, 1420.)

Plaintiff states that all Defendants had a statutory legal duty under California Penal Code 11164 et seq, to report "known or suspected child abuse or neglect." (FAC ¶ 58.) Penal Code section 11165.7 defines as a "mandated reporter" a series of occupations and positions that require mandatory reporting. Penal Code section 11165.7, subsection (49) states that "An adult person whose duties require direct contact with and supervision of minors in the performance of the minors' duties in the workplace of a business [...] is a mandated reporter of sexual abuse." Under Penal Code section 11166, "a mandated report shall make a report [...] whenever the mandated reporter [...] has knowledge of or observes a child whom the mandated reporter knows or reasonably suspects has been the victim of child abuse or neglect."

Plaintiff has failed to state a claim for violation of this statute because the FAC does not allege facts that any of the conduct defined as "child abuse or neglect," including "sexual abuse" or "sexual assault" as defined in section 11165.1, ever occurred. Plaintiff's conclusory references to Defendant Spencer having "sexually assaulted" her do not suffice to show conduct which (if disclosed or observed by an individual with a duty to report) triggers the mandatory reporting requirement. Plaintiff's conclusory references to Defendant McMichael "grooming" her suffers the same fate.

Plaintiff does not allege that she was a child at the time she made either of these disclosures, and she does not allege that any individuals at Party Pros were otherwise aware of, or observed the alleged abuse of Plaintiff, at any time prior to these disclosures. Thus, the FAC does not allege facts indicating that a duty to report ever arose by any individual at Party Pros. To the extent Plaintiff intends to assert that Mr. Spencer and Mr. McMichael each violated this statute by failing to report their own alleged abuse of Plaintiff while she was a minor, the claim fails because such conduct does not satisfy the element of a negligence per se claim which requires that the injury result from an occurrence the statute was designed to prevent. Construing the reporting statute to require perpetrators of abuse to self-report would conflict with Fifth Amendment rights against self-incrimination. (*Kassey S. v. City of Turlock* (2013) 212 Cal. App. 4th 1276, 1280).

Plaintiff does not allege her age or Defendant McMichael's age at the time she entered a relationship with him. Plaintiff fails to allege facts that would constitute as "sexual abuse" under subsection (d) of Penal Code section 261.5, as required by the statute for an otherwise consensual relationship to constitute sexual abuse which must be reported.

Conclusion

For the reasons analyzed above, **Defendants' Demurrer is sustained in its entirety with leave to amend.**

10. 9:00 AM CASE NUMBER: C25-00150
CASE NAME: SABRINA BEISNER VS. BRIAN DOYLE
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF 1ST AMENDED COMPLAINT
FILED BY: DOYLE, BRIAN
TENTATIVE RULING:

Introduction

Defendants The Party Pros Disc Jockey and Event Services, Inc., a California corporation. doing business as Denon & Doyle (also sued incorrectly herein as Denon & Doyle, and Party pros) (defined herein as the "Company" or "Party Pros"); Tyrone Spencer, an individual; Brian Doyle, an individual; Susan Doyle, an individual; and Patrick McMichael, an individual (collectively, Defendants) move the court for an order striking the following allegations from Plaintiff s First Amended Complaint ("FAC"):

1. Paragraphs 28.34.41,47,51,52,56, and 62, seeking punitive damages.
2. The request for punitive damages made at item 3 in the prayer for relief.
3. The request for attorney's fees made at item 5 in the prayer for relief.

As explained below, **Defendants' Motion to Strike is granted with leave to amend.**

Legal Standard

A court's determination of a motion to strike is a matter within its discretion. (*Clements v. T.R. Bechtel Co.* (1954) 43 Cal.2d 227, 242.) When ruling on a motion to strike, the court must read the allegations subject to the motion, as a whole, with all parts in their context, and assume their truth. (*Clauson v. Superior Court* (1998) 67 Cal.App.4th 1253, 1255; *Spielholz v. Superior Court* (2001) 86 Cal.App.4th 1366, 1371.) As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from any matter which the court may judicially notice. (Civ. Proc. Code § 437.) A motion to strike may not be based on "extrinsic evidence showing that the allegations are 'false' or 'sham.' Such challenges lie only if these defects appear on the face of the complaint, or from matters judicially noticeable." (Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial, ¶7:168 (TRG 2023).)

The court may strike any irrelevant, false, or improper matter from any pleading. (Code Civ. Proc., § 436(a).) The court may also strike out all or any portion of any pleading not drawn in conformity with the laws of this state. (Code Civ. Proc., § 436(b).) "Irrelevant matter," as the term is used in section 436, means "immaterial allegation." (Code Civ. Proc., § 431.10(c).) Code of Civil Procedure section 431.10(b) defines "immaterial allegation" as, among others, a demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint.

Analysis

Punitive Damages

Civil Code § 3294, which requires clear and convincing evidence that a defendant acted "willfully, maliciously, oppressively, and despicably" or with a conscious disregard of Plaintiff's rights.

Plaintiff in her opposition generally points to her conclusory statements in the FAC that Plaintiff was sexually assaulted and that Defendants Spencer and McMichael's conduct was malicious and oppressive. (Oppo at pp.4-6.) This is not enough to establish punitive damages.

Plaintiff's punitive damages requests are insufficient because she may not justify them simply by

echoing the language of § 3294. (*Brousseau v. Jarrett* (1977) 73 Cal.App.3d 864,872 [conclusory language describing defendant's conduct as intentional, willful and fraudulent is insufficient statement of oppression. fraud or malice within the meaning of section 3294]; *Smith v. Superior Court* (1992) 10 Cal.App.4th 1033, 1041-42 [Insufficient facts to support claim for punitive damages where the sole basis was conclusory allegations characterizing defendants' conduct as intentional, willful, and fraudulent].)

Attorney's Fees

California generally follows what is commonly referred to as the "American Rule," which provides that each party to a lawsuit must ordinarily pay his or her own attorney fees. (See, e.g., *Trope v. Katz* (1995) 11 Cal.4th 274, 278.) The American Rule is codified in Code of Civil Procedure section 1021, which states in relevant part: "Except as attorney's fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties" (*Tract 19051 Homeowners Assn. v. Kemp* (2015) 60 Cal.4th 1135, 1142.)

"Every brief should contain a legal argument with citation to authorities on the points made. If none is furnished on a particular point, the court may treat it as waived and pass it without consideration." (*People v. Stanley* (1995) 10 Cal.4th 764, 793.) Defendants argue that there is no such agreement that requests attorney's fees. (MTS at p. 7: 7-8.) Plaintiff does not argue this point in her opposition. (See *Oppo* generally.) The Court will treat Plaintiff's failure to argue this point as a Plaintiff conceding this point.

Conclusion

For the reasons analyzed above, **Defendants' Motion to Strike is granted with leave to amend.**

11. 9:00 AM CASE NUMBER: C25-00225
CASE NAME: VALENTINA HOEVEN VS. CONTRA COSTA COUNTY
HEARING ON DEMURRER TO: FIRST AMENDED COMPLAINT
FILED BY: CONTRA COSTA COUNTY
TENTATIVE RULING:

Before the Court is Defendant Contra Costa County ("Defendant" or "County")'s demurrer to Plaintiff Valentina Hoeven ("Plaintiff" or "Hoeven")'s First Amended Complaint for (1) Retaliation in Violation of FEHA (Government Code § 12940, et seq.); (2) Retaliation in Violation of Labor Code § 1102.5; (3) Gender/Sex Discrimination in Violation of FEHA (Government Code § 12940, et seq.); (4) National Origin Discrimination in Violation of FEHA (Cal. Gov. Code § 12940, et seq.); (5) Disability Discrimination in Violation of FEHA (Government Code § 12940, et seq.); (6) Failure to Engage in Good Faith Interactive Process in Violation of FEHA (Government Code § 12940, et seq.); (7) Failure to Provide Reasonable Accommodations in Violation of FEHA (Government Code § 12940, et seq.); (8) Pregnancy Discrimination in Violation of PDL (Government Code § 12945, et seq.); (9) Failure to Reasonably Accommodate Pregnancy-Related Conditions in Violation of PDL (Government Code § 12945, et seq.); and (10) Failure to Prevent Discrimination and Harassment in Violation of FEHA (Government Code § 12940, et seq.)

Defendant demurs to Plaintiffs' FAC on the grounds that she has not stated any claims for relief.